General Terms and Conditions
for the idealo MCP (Trial Version)

Translation for convenience – the German version shall prevail (see Section 10.3).

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idealo internet GmbH, Zimmerstraße 50, 10888 Berlin (**"idealo"**), operates price comparison platforms for goods across Europe, in particular at www.idealo.de, www.idealo.at, www.idealo.fr, www.idealo.es, www.idealo.it and www.idealo.co.uk, including the respective associated apps (iOS, Android) (collectively the **"idealo Sites"**). idealo provides registered companies, free of charge and for testing purposes, with a technical interface based on the Model Context Protocol under the designation **idealo MCP (Trial Version)** (hereinafter **"Trial-MCP"**). A separately agreed, paid successor version of this service will be offered under the designation **idealo MCP (Partner Version)** (hereinafter **"Partner-MCP"**). These General Terms and Conditions (**"GTC"**) govern the contract between idealo and the user regarding the provision and use of the Trial-MCP (**"User Agreement"**).

1. Scope and User Group

1.1 These GTC apply to all legal relationships between idealo and the user in connection with the registration for the Trial-MCP and its use.

1.2 The Trial-MCP is exclusively directed at entrepreneurs within the meaning of Section 14 of the German Civil Code (BGB) (**"User"**). Use by consumers (Section 13 BGB) as well as any private use is excluded. Registration and use may only take place in the name and on behalf of the registered company; the registering person warrants that they are authorised to represent or act on behalf of the company.

1.3 Conflicting, deviating or supplementary terms and conditions of the user shall not become part of the contract, even if idealo does not expressly object to their application.

2. Subject Matter and Character of the Trial-MCP

2.1 The Trial-MCP is a free, time-limited access provided for testing purposes to a technical interface through which the user may query certain data visible on the idealo Sites to the extent determined by idealo.

2.2 The Trial-MCP serves exclusively the following purposes: (a) internal evaluation, (b) internal technical testing, (c) prototyping, (d) internal demonstrations, (e) functional validation of product, offer and referral use cases, and (f) preparation of a possible later use of the Partner-MCP. Any use beyond this is not part of the subject matter of the contract.

2.3 The Trial-MCP is not a productive service. The provision of the Trial-MCP gives rise to no claim to the conclusion of a Partner-MCP contract or to any continuation of the access to the Trial-MCP in any form whatsoever.

3. Registration, Conclusion of Contract and Access Credentials

3.1 To conclude the User Agreement, the user must register and provide at least the following information: (a) name of the registering natural person, (b) name of the company in whose name the registration is made, and (c) business e-mail address. The user confirms these GTC by ticking a corresponding box; registration is completed via a double opt-in procedure.

3.2 The User Agreement is only concluded upon activation of the access by idealo. There is no entitlement to activation; idealo may reject, not activate, restrict or subsequently block any registration at any time and without giving reasons.

3.3 The user is obliged to provide all information truthfully, completely and in an up-to-date manner and to notify idealo of any changes without undue delay.

3.4 Access credentials – in particular passwords, API keys and other authentication features – must be treated confidentially by the user, protected against unauthorised access, and must not be passed on to third parties. The user is liable for any use occurring under the access credentials assigned to it as for its own conduct. Loss, compromise or suspicion of misuse must be reported to idealo without undue delay.

4. Access, Term and Termination

4.1 Access to the Trial-MCP is time-limited and will generally be granted for 30 days from activation. idealo may shorten or extend the term for objective reasons at its reasonable discretion.

4.2 idealo is entitled to restrict, block or terminate individual accounts or the access to the Trial-MCP as a whole at any time at its reasonable discretion, in particular in case of breaches of these GTC, suspicion of misuse, or in order to safeguard legitimate interests of third parties or changed legal requirements.

4.3 Either party may terminate the User Agreement ordinarily at any time without observing a notice period. The right to extraordinary termination for good cause remains unaffected.

4.4 Upon expiry of the term set by idealo, upon termination taking effect or upon a block taking effect, the user's right to further use of the Trial-MCP shall end.

4.5 After expiry of the term, after termination or after a block, a re-registration of the same user or of another user of the same company is permitted only with the prior consent of idealo in text form.

5. Permitted and Prohibited Use

5.1 The user may use the Trial-MCP exclusively for the purposes set out in Section 2.2. In particular, the exclusively internal use with AI models and agent systems is also permitted, provided that such use serves solely internal evaluation, prototyping or the internal preparation of a possible later use of the Partner-MCP and is not used to serve end customers or in live or productive systems.

5.2 Prohibited in particular are:

(a) any commercial or end-customer-related use as well as any deployment in live or productive systems;

(b) the disclosure of the content and data accessed via the Trial-MCP to third parties as well as the sub-licensing thereof;

(c) the use of the content and data accessible via the Trial-MCP for the training, fine-tuning or creation of training, test or evaluation datasets, or for the development of own AI models, databases, services or other applications;

(d) any systematic data extraction, any scraping outside the intended framework, as well as the use of bots, crawlers or comparable automated means, insofar as not required for the intended interface access;

(e) any competitive monitoring, any price observation, price coordination, price control or any other use that restricts competition;

(f) any circumvention, modification or impairment of technical or content-related restrictions, security measures or authentication mechanisms of the Trial-MCP;

(g) any reverse engineering, decompilation, disassembly, as well as any load test or comparable examination of the Trial-MCP;

(h) any unlawful, misleading or contract-breaching use of the Trial-MCP, including the infringement of third-party rights.

5.3 The user must ensure compliance with these requirements also by persons attributable to it.

6. Data, Rights and Reservation of Restrictions

6.1 idealo determines the scope of data, data sources, functions as well as technical and content-related usage restrictions of the Trial-MCP at its reasonable discretion and may adjust or discontinue them at any time.

6.2 The user has no right to any specific data, data sources, functions, availability, data quality, completeness, timeliness or freedom from defects. idealo is under no obligation to provide data on a continuous basis.

6.3 The user acquires no ownership, no licence and no other right of use in the content and data made accessible via the Trial-MCP, other than the non-exclusive (simple), non-transferable and non-sub-licensable right, limited to the term of the User Agreement, to use them exclusively within the scope of the permitted use of the Trial-MCP pursuant to Section 5. Rights of third parties remain unaffected.

7. Monitoring, Cooperation and Deletion

7.1 idealo is entitled to monitor the use of the Trial-MCP, in particular usage patterns, registrations, repeated or conspicuous queries, attempts at circumvention and other anomalies.

7.2 idealo may at any time request additional information and evidence from the user regarding identity, company, use cases and the nature and extent of the actual use. The user is obliged to cooperate without undue delay, completely and truthfully; missing or incorrect cooperation entitles idealo to block the access pursuant to Section 4.2.

7.3 Upon termination of the User Agreement, the user must delete all content and data retrieved via the Trial-MCP without undue delay, completely and irrevocably, unless mandatory statutory retention obligations preclude this. Upon corresponding request of idealo, the user must confirm the proper deletion in text form without undue delay.

8. Liability and Indemnification

8.1 The Trial-MCP is provided free of charge and for testing purposes. idealo does not warrant any specific availability, freedom from defects, completeness, timeliness, fitness for a particular purpose or commercial usefulness.

8.2 idealo is liable without limitation in cases of intent and gross negligence, for culpable injury to life, body or health, under the provisions of the German Product Liability Act (Produkthaftungsgesetz), and to the extent of expressly assumed guarantees. In the case of a slightly negligent breach of essential contractual obligations – i.e. obligations the

fulfilment of which is essential for the proper performance of the User Agreement and on the observance of which the user may regularly rely – the liability of idealo is limited to the typical and foreseeable damage. Otherwise, the liability of idealo is excluded, in particular for indirect damages, consequential damages, lost profits and loss of data.

8.3 The user shall indemnify idealo on first demand from all claims of third parties asserted against idealo on the basis of any contract-breaching, unlawful or otherwise abusive use of the Trial-MCP by the user or by persons attributable to it; the indemnification covers the reasonable costs of legal defence of idealo (court and lawyers' fees in the respective statutory amount). The indemnification obligation does not apply to the extent that the user is not responsible for the asserted infringement.

9. Advertising, Data Protection and Amendment of the GTC

9.1 idealo is entitled to use the business e-mail address of the user collected in the course of registration, to the extent legally permitted (Section 7 (3) of the German Act against Unfair Competition (UWG)), also for information about its own similar services. The user may object to such use at any time and free of charge, in particular by e-mail to MCP@idealo.de or via the unsubscribe link contained in each advertising e-mail.

9.2 Information regarding the processing of personal data in connection with the registration for and the use of the Trial-MCP can be found in the separate Privacy Notice, available at https://solutions.idealo.com/privacy-policy.

9.3 idealo reserves the right to amend these GTC for objective reasons with effect for the future. Material amendments will be announced to the user by e-mail to the registration address provided and will require, before any further use, the user's renewed express consent by ticking a corresponding box. Adjustments which idealo is, under these GTC, in any event entitled to make – in particular concerning the scope of data, data sources, functions, technical and content-related restrictions, term and availability – do not constitute an amendment of these GTC within the meaning of this Section.

10. Final Provisions

10.1 These GTC and all legal relationships between idealo and the user shall be governed exclusively by the laws of the Federal Republic of Germany under exclusion of the rules of private international law and of the United Nations Convention on Contracts for the International Sale of Goods (CISG).

10.2 Place of performance and exclusive place of jurisdiction for all disputes arising from or in connection with the User Agreement is Berlin, insofar as the user is a merchant, a legal person under public law or a special fund under public law, or has no general place of jurisdiction in Germany.

10.3 The contract language is German. In the event of a translation into another language, only the German version shall be authoritative.

10.4 The user may transfer rights or obligations under this contract to third parties only with the prior consent of idealo in text form; idealo may assign rights and obligations under this contract.

10.5 Communications under this contract may – unless expressly agreed otherwise or required by statutory provisions – be transmitted by e-mail to the addresses designated by the parties (text form).

10.6 Should any provision of these GTC be or become invalid or unenforceable in whole or in part, or should these GTC contain a gap, the validity of the remaining provisions shall not be affected thereby. In place of the invalid or unenforceable provision, or in order to close the gap, that valid and enforceable provision shall apply which comes closest to the economic purpose intended by the parties.

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